SERVICES AGREEMENT

Agreement no. SA-2026-017

This Services Agreement (the "Agreement") is made on 1 October 2026 (the "Effective Date") between **Fabrikam Consulting LLC**, 100 Example Plaza, Lakeside 11111 (the "Provider"), and **Tailspin Toys Inc.**, 200 Sample Boulevard, Hillview 22222 (the "Client"). The Provider and the Client are each a "Party" and together the "Parties".

1. Services

The Provider will deliver the services described in Schedule A (the "Services") with reasonable skill and care and in accordance with good industry practice. The Provider may use subcontractors with the Client's prior written consent, which will not be unreasonably withheld.

2. Term

This Agreement starts on the Effective Date and continues for twelve (12) months, after which it renews automatically for successive periods of twelve (12) months unless either Party gives at least sixty (60) days' written notice of non-renewal before the end of the current term.

3. Fees and payment

1. The Client will pay the fees set out in Schedule B. All fees exclude applicable taxes.
2. The Provider will invoice monthly in arrears. Invoices are payable within thirty (30) days.
3. Late payments bear interest at 1% per month or the maximum rate permitted by law, whichever is lower.

4. Confidentiality

Each Party will keep the other Party's Confidential Information secret and use it only to perform this Agreement. This obligation does not apply to information that is or becomes public through no fault of the receiving Party, was lawfully known to it before disclosure, or must be disclosed by law. These obligations survive termination for five (5) years.

5. Intellectual property

Each Party keeps ownership of its pre-existing intellectual property. On full payment, the

Provider assigns to the Client all rights in the deliverables created specifically for the Client under this Agreement, excluding the Provider's general tools, methods and know-how, which the Client may use under a non-exclusive, perpetual, royalty-free licence as part of the deliverables.

6. Limitation of liability

Neither Party is liable for indirect or consequential loss, or for loss of profit, revenue or data. Each Party's total liability under this Agreement is limited to the fees paid or payable in the twelve (12) months before the event giving rise to the claim. Nothing in this Agreement limits liability for fraud, death or personal injury caused by negligence.

7. Termination

Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach that is not remedied within thirty (30) days of written notice, or becomes insolvent. On termination the Client will pay for Services performed up to the termination date.

8. General

This Agreement is the entire agreement between the Parties about its subject matter. Any change must be in writing and signed by both Parties. If any provision is found invalid, the rest remains in force. This Agreement is governed by the laws of the State of Example.

Schedule A — Services

Discovery workshops; quarterly product strategy reviews; user research with up to twenty (20) participants per quarter; and a written recommendations report at the end of each quarter.

Schedule B — Fees

A fixed monthly fee of $8,500, plus pre-approved expenses at cost.

For Fabrikam Consulting LLC

Name:

Title:

Date:

For Tailspin Toys Inc.

Name:

Title:

Date: